

Whistleblowing policy for partners

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General terms

1. Introduction

- 1.1. This Whistleblowing Policy (“**Policy**”) applies to Deriv Group SEZC and all entities directly or indirectly owned or controlled by it (collectively, the “**Deriv Group**” or “**Group**”, and individually, a “**Deriv Group Company**”).
- 1.2. The Deriv Group is committed to the highest standards of transparency, ethics, integrity, and accountability. To uphold this commitment, this Policy provides a secure, confidential avenue for Partners to report any potential misconduct within the Group, without fear of reprisal. It ensures that whistleblowers are treated fairly and have ample opportunity to speak up throughout the investigation and resolution process.
- 1.3. This Policy establishes a global framework aligned with international regulatory standards. While it serves as a central pillar of Group governance, certain subsidiaries have adopted separate policies to satisfy local law requirements. In the event of a conflict between this Policy and a specific Deriv Group Company policy, the provisions of the local policy shall take precedence.

2. Objectives of the Policy

- 2.1. The objectives of this Policy are:
 - 2.1.1. Establish a formal process for raising and addressing whistleblowing concerns, supported by a clear framework;
 - 2.1.2. Encourage Partners to report improper, unethical, and/or inappropriate behaviour without fear;
 - 2.1.3. Guarantee that all reports will be handled appropriately and kept confidential;
 - 2.1.4. Implement safeguards to protect whistleblowers from any form of reprisal or retaliation; and
 - 2.1.5. Foster a culture of accountability, integrity, and transparency throughout the Deriv Group.

3. Definitions

- 3.1. The definitions used in this Policy are set out below for ease of reference.
 - 3.1.1. “**Disclosure**”: The act of reporting a Reportable Matter in accordance with the procedures outlined in this Policy.
 - 3.1.2. “**Group Whistleblowing Officer**”: The Vice President of Legal Compliance, appointed by the Deriv Group to manage and/or investigate the Reportable Matter.
 - 3.1.3. “**Management**”: Senior staff who are individually or jointly responsible for the decision-making and operation of Deriv Group.

- 3.1.4. **“Partners”**: Affiliates, Introducing Brokers, Payment Agents, and/or Deriv API Users.
- 3.1.5. **“Reportable Matter”**: Incidents of wrongdoings (suspected or actual) which might amount to a breach of local laws, regulations or policies referred to in Section 4 of this Policy.
- 3.1.6. **“Whistleblower”**: Any individual or entity that discloses a Reportable Matter. This includes any entity or person who has dealings with any Deriv Group Company, whether as a service provider, consultant, employee, or recipient of services from any Deriv Group Company.
- 3.1.7. **“Whistleblowing”**: The reporting of a Reportable Matter to the Group Whistleblowing Officer (or his/her nominated deputy) or as otherwise set out in this Policy.

4. Scope of the Policy

- 4.1. This Policy establishes a framework for managing disclosures of incidents involving wrongdoing that significantly impact Deriv Group and its Partners.
- 4.2. Incidents of wrongdoing include, but are not limited to:
 - 4.2.1. Violations of law or policy: Intentional or deliberate breaches of laws, regulations, or internal policies, specifically including data protection, anti-bribery and corruption, and health or health and safety legislation;
 - 4.2.2. Criminal activity: Any criminal act that has been, is being, or is likely to be committed;
 - 4.2.3. Financial crime: Involvement in money laundering, terrorist financing, or instances of bribery and corruption;
 - 4.2.4. Financial loss: Wilful collusion to cause unlawful loss or unjust disadvantage to the Deriv Group;
 - 4.2.5. Regulatory breaches: Any act or omission that breaches consumer protection laws or environmental safety standards;
 - 4.2.6. Concealment: Deliberate suppression or concealment of information relating to any of the above; or
 - 4.2.7. Procedural injustice: Actions or situations that have occurred, are occurring, or are likely to occur that result in a miscarriage of justice or a violation of ethical standards.

5. Application

- 5.1. This Policy is applicable to the Deriv Group and its Partners, regardless of their location. All the Deriv Group Partners are required to read and understand the requirements set out in this Policy.

6. Roles and responsibilities

- 6.1. The Management is responsible for ensuring that whistleblowing practices across the Deriv Group comply with this Policy. The Group Whistleblowing Officer supports the Management by overseeing implementation, ensuring procedures are followed effectively, and safeguarding the integrity of the reporting process. It is important to note that there will be instances when dealing with Partners, which will be outside of the Deriv Group's control. The Deriv Group will not be held liable for such instances.

7. Reporting mechanism

- 7.1. The scope of this Policy includes Whistleblowing concerns raised in good faith, whether internally or externally. A Disclosure is protected if the Whistleblower has reasonable grounds to believe the information is true at the time of reporting.
- 7.2. To facilitate a thorough investigation, Disclosures should provide as much detail as possible. While reports may be made anonymously, providing the following information (where possible) is encouraged:
 - 7.2.1. The name and contact details of the Whistleblower;
 - 7.2.2. The nature of the Reportable Matter (e.g., a specific violation of Deriv Group policies);
 - 7.2.3. The time and location where the Reportable Matter occurred, is occurring, or is likely to occur;
 - 7.2.4. The names and descriptions of any witnesses;
 - 7.2.5. Details of any previous Disclosures regarding the same or related matters, including to whom the report was made; and
 - 7.2.6. The Whistleblower's current employment status relative to the subject of the report.
- 7.3. All Disclosures made orally, whether to the Group Whistleblowing Officer or any other authorised individual, must be documented in writing by the recipient. This record should include all key facts provided and, where possible, be reviewed by the Whistleblower to confirm its accuracy.
- 7.4. The Whistleblower has the following rights:
 - 7.4.1. Protection against any form of retaliation and reprisal;
 - 7.4.2. Access to information regarding the reporting process;
 - 7.4.3. Guidance on the implications of making a Disclosure;
 - 7.4.4. The option to report concerns anonymously;
 - 7.4.5. Confidentiality regarding their identity and the details of the concern raised;
 - 7.4.6. The right to receive regular status update on their report; and
 - 7.4.7. The ability to escalate concerns if necessary.

7.5. Reporting channels

7.5.1. Anyone wishing to report a Reportable Matter or any related information may contact the Group Whistleblowing Officer through the following channels:

7.5.1.1. In writing via email to: speakup.partners@deriv.com; or

7.5.1.2. In person.

7.5.2. If the Whistleblower reasonably believes that the Group Whistleblowing Officer:

7.5.2.1. Is or may be involved in the Reportable Matter; and/or

7.5.2.2. Is not an appropriate person to receive the Disclosure due to a relationship or association with someone who is or may be involved in the alleged improper practice,

the Whistleblower may make an internal Disclosure to the Group Compliance Officer who, in this instance, shall be deemed to be the Whistleblowing Reporting Officer. The Group Compliance Officer can be contacted via email at joanna@deriv.com.

8. Investigation procedures and confidentiality

8.1. Acknowledgement and timeline

8.1.1. The Group Whistleblowing Officer will acknowledge the receipt of a report within seven (7) calendar days. A full investigation, conducted as a neutral and fact-finding effort, will be completed within ninety (90) calendar days.

8.2. Interviews and evidence

8.2.1. The Group Whistleblowing Officer will schedule an interview to gather facts and explain procedures. To maintain the integrity of the investigation:

8.2.1.1. Whistleblowers must not withhold or tamper with evidence; and

8.2.1.2. Whistleblowers are advised to refrain from discussing the matter with others within the Group to ensure their own protection and the confidentiality of the case.

8.3. If the investigation concludes that an improper or unethical act has likely occurred, appropriate disciplinary or corrective action will be taken in accordance with Deriv Group policies.

8.4. Confidentiality

8.4.1. All concerns raised under this Policy will remain confidential between the Whistleblower, the Group Whistleblowing Officer, and any other individuals who need to be notified of the Disclosure, as required. This confidentiality will be maintained, unless the Whistleblower provides express written consent for the sharing of their identity or the specific information provided.

8.5. Anonymous reporting

- 8.5.1. While the Deriv Group encourages named Disclosures to facilitate thorough investigation, anonymous reports will still be fully considered and investigated to the extent possible based on the information provided.
- 8.5.2. Depending on the nature of the Reported Matter, the concerned Deriv Group Company may be legally required to disclose some or all reported information to a third party such as law enforcement or a regulatory body. In such cases, the Group will continue to protect the Whistleblower's identity to the extent permitted by law.

9. Exceptions to the confidentiality principle

- 9.1. Despite our commitment to confidentiality, the Deriv Group reserves the right to disclose relevant information to appropriate authorities.
 - 9.1.1. Identity disclosure
 - 9.1.1.1. As a general rule, the identity of a Whistleblower is known only to the Group Whistleblowing Officer. This identity will not be shared with any other party unless:
 - 9.1.1.1.1. It is strictly necessary for authorised persons (such as legal counsel or auditors) to know in order to conduct a thorough investigation, following prior notification to the Whistleblower; or
 - 9.1.1.1.2. Any Deriv Group Company is legally compelled to disclose the identity by a competent authority.
 - 9.1.2. Compliance with applicable laws
 - 9.1.2.1. The identity of the Whistleblower will be kept confidential to the extent permitted by law. In cases where any Deriv Group Company is legally compelled to disclose an identity to authorities (e.g., via court order), the Whistleblower will be notified in advance, provided that such notification does not jeopardise a formal legal investigation.

10. Protection against retaliation

- 10.1. The Group strictly prohibits any form of retaliation, discrimination, or harassment against any Whistleblower who makes a Disclosure based on reasonable grounds. A zero-tolerance approach is maintained toward any actions intended to penalise an individual or entity for reporting concerns in good faith.
- 10.2. Any person found to have engaged in retaliatory behaviour will be subject to appropriate action. For employees, this may include disciplinary measures up to and including termination of employment.

11. Data privacy and records

- 11.1. All personal data processed under this Policy shall be handled and stored in strict accordance with applicable data protection laws. Records of Disclosures and subsequent investigations shall be retained only for as long as is necessary to fulfil legal and regulatory requirements, after which they will be securely deleted or anonymised.

12. Policy review

- 12.1. This Policy will be reviewed annually. More frequent reviews may be conducted in response to legislative changes, updates to operational processes, or shifts in the organisational structure of the Deriv Group.

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